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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

අංක 2454/42 – 2025 සැප්තැම්බර් මස 17 වැනි බදාදා – 2025.09.17
No. 2454/42 – WEDNESDAY, SEPTEMBER 17, 2025

(Published by Authority)

PART I: SECTION (I) – GENERAL
Government Notifications

My No.: සාහි/වතු/6/2023

THE INDUSTRIAL DISPUTES ACT - (CHAPTER 131)

THE Collective Agreement entered into between **Janatha Estates Development Board - No. 55/75, Vauxhall Lane, Colombo 02** of the one part and the **Ceylon Estate Staffs' Union - No. 06, Aloe Avenue, Colombo 03** of the other part on 14th July 2023 is hereby published in terms of Section 06 of the Industrial Disputes Act, Chapter 131, of the Legislative Enactments of Ceylon (Revised Edition 1956).

H.M.D.N.K. WATALIYADDA,
Commissioner General of Labour.

Department of Labour,
Labour Secretariat,
Colombo 05.
02nd September, 2025.

Collective Agreement No. 36(4) of 2023



COLLECTIVE AGREEMENT - MEDICAL STAFF

This Collective Agreement made and entered into between the Janatha Estates Development Board, No. 55/75 Vauxhall Lane, Colombo 2 of the First Part, and the Ceylon Estate Staffs' Union of No. 6, Aloe Avenue, Colombo 3 of the Second Part, on this 14th day of July, Two Thousand and Twenty-Three witnessed as follows :-

1. **Title.**– This Agreement shall be known as the Plantations Medical Staff Collective Agreement.

2. **Employers covered and bound.**– This Agreement shall bind the management of Janatha Estates Development Board, whose name is mentioned as first part for and in respect of the categories of employees hereinafter described in Clause 3, hereof.

3. **Unions and employees covered and bound.**– This Agreement shall cover and bind the aforesaid Trade Union, hereinafter referred to as the Union, and members of the said Union who are employed by Janatha Estates Development Board on monthly contracts of employment and in respect of categories of employees given in Schedule I, hereon.

4. **Earlier agreements.**– The provisions of this Agreement shall supersede and replace any earlier Agreements in respect of these categories and shall be deemed conclusive in relation to all terms and conditions. In the event of there being any dispute with regard to the existence of any other term or condition not contained herein, the same shall be resolved by reference to the 'disputes committee' and thereafter to the Commissioner General of Labour in terms of the Industrial Disputes Act if the matter is not resolved before the 'disputes committee', but the party of the Second Part shall not be entitled to take trade union action on the basis of the existence of any such alleged term or condition.

5. **Date of operation and duration.**– Subject to any provisions to the contrary, this Agreement shall be effective from 01st October 2022 and shall thereafter continue in force unless terminated by either party by giving notice of termination in terms of the Industrial Disputes Act, subject to the condition that no party shall give such notice to the other before 30th September 2025.

6. **General terms and conditions.**–

- a) The revised terms and conditions relating to this Agreement shall only come into force on the 01st October 2022 and shall be deemed to be included in all contracts of employment of those covered by this Agreement with effect from the said date.
 - i. Grading of employees covered shall be at the discretion of the Employer.
 - ii. The following rules of grading shall apply to the specified grades:
 - a. A pharmacist shall be a person who has successfully obtained an acceptable qualification.
 - b. A midwife (Grade 1) shall be a person with qualifications and training.
 - iii Any employee enjoying better terms and conditions than what is stipulated in this Agreement shall continue to enjoy the same.
 - iv Child Development Officers/Welfare Officers/Orderlies/Ward Attendants and Midwives after completion of 15 years of service under the same Employer shall be granted an additional Rs.100.00 annual increment.

- b) All Registered Practitioners (RMPs), Estate Medical Assistants (EMAs) and Assistant Medical Practitioners (AMPs) with over 20 years' experience shall be placed on the Medical Practitioners Grade.
- c) All Estate Medical Assistants (EMAs) and all Assistant Medical Practitioners (AMPs) with less than 20 years service shall be placed in the Estate Medical Practitioners Grade.

7. **First Appointment.**-

- i. No person will be recruited to a grade covered by this Agreement unless he has successfully completed the G.C.E. (Ordinary Level) Examination with English and Arithmetic/Mathematics. This will not apply to those who have experience in the trade.
- ii. All designations of new recruits should be as specified under Schedule I.

8. **Probation.**- On recruitment every employee shall serve a period of probation of not more than six months, subject to the right of the Employer to extend the probationary period for a further period of three months at his discretion for reasons of unsatisfactory performance, misconduct or other justifiable cause. Confirmation shall be by letter. However, in the event of the probationary period not being extended after the period of 6 months, an employee shall be deemed to be confirmed notwithstanding there being no letter of confirmation. During the period of probation or extended probation the Employer shall have the right to terminate without notice or assigning reasons therefore.

9. **Attendance at work.**- Unless otherwise specifically instructed by his Employer an employee shall present himself for work on every day other than a holiday due to him, at the usual starting time and at the usual working place and shall thereafter remain available for work throughout the normal working hours.

10. **Promotions.**-

- i. Wherever vacancies exist, all other factors being comparable, seniority shall be given preference. The Employers shall advertise internally vacancies where employees covered by this Agreement may have appropriate skills and qualifications to make them eligible.
- ii. Where an employee acts in a senior capacity over a period of 6 months and if he is confirmed in the senior capacity, he will not be required to serve a period of probation.
- iii. Where an employee is required to act in a senior capacity for a period of more than one month, it should be communicated to him in writing and he shall be paid an Acting Allowance of Rupees Two Thousand Five Hundred (Rs. 2,500.00) per mensem. When confirmed this allowance shall be added to his/her salary.
- iv. When promoting to a senior position, a salary increase of minimum one increment shall be granted.
- v. During the period of overlooking the employer shall pay the employee 10% of the employee's basic salary as an overlooking allowance. This functional allowance shall not attract any consequential benefits such as EPF/ETF.

11. **Salaries.**-

- 1. The salaries payable to the employees covered and bound by this Agreement shall be revised as follows:
 - i. With effect from 01st October 2022, the salaries of covered employees who are in employment shall be increased by 25% based on the salary drawn in September 2022.

- ii. With effect from 01st October 2024, the salaries of covered employees who are in employment, shall be increased by 5% based on the salary drawn in September 2022.
 - iii. Subject to the provisions set out in clause 6(i) above, the **Janatha Estates Development Board** covered and bound shall pay the revised salaries in the month of October 2022.
 - iv. In the case of Storekeepers/Medical staff who are entitled to an allowance on account of work as a Storekeeper, as the case may be, such employee shall continue to receive his/her allowances at the rate of 15% of the salary drawn by him/her. The allowances shall not be payable if the additional duties are not performed or not deemed necessary. Contributions to EPF and ETF shall be made in respect of this allowance.
 - v. In terms of the above salary revision, the salary ranges applicable will accordingly be revised as per schedule I of this Agreement.
 - vi. Employees who reach the maximum salary point depicted in the scale will continue to receive annual increments if they continue to remain within the same category.
2. i. With effect from the date hereof, employees who are entitled to a payment in lieu of staff quarters being provided to them shall receive a 10% increment of the following allowances which will be rounded off to nearest fifty rupees, depending on the grade to which they belong, and the revised allowances will be as follows:

Child Development Officers, Orderly and Ward Attendant Midwife (Grade II), Welfare Officer, Apprentice Pharmacist, Midwife (Grade I) Pharmacist/Junior Estate Medical Assistant Estate Medical Practitioner Medical Practitioner	-	Rs.1,350/- + 10% = Rs.1,500/-
	-	Rs.1,450/- + 10% = Rs.1,600/-
	-	Rs.1,700/- + 10% = Rs.1,900/-
	-	Rs.1,850/- + 10% = Rs.2,050/-
	-	Rs.1,900/- + 10% = Rs.2,100/-

- ii. In the event of any person not occupying quarters provided by the employer, such person shall be liable to disciplinary action.
12. **Annual increments.**—
- i. Annual increments shall be granted automatically on completion of a year's service. The increments will be awarded in accordance with the practice prevailing on each estate. Where increments are awarded on a uniform date to all employees, in the event of an employee being confirmed in service within six months of the date on which increments are awarded, he shall not be entitled to any increment and will become eligible only from the following year.
 - ii. An increment may be suspended, stopped or deferred, by way of punishment or for general inefficiency, after the employee has been notified in writing of such fact. In the case of deferment, the loss of increment shall be continuous, whereas stoppage would be only for the period relevant to the stoppage.
 - iii. Revised annual increments shall be paid to all employees in employment as on 01st October 2022.

Child Development Officer/ Orderly and Ward Attendant	Rs. 775.00
Midwife Grade II/ Apprentice Pharmacist/ Midwife Grade I/and Welfare Officer	Rs. 925.00
Pharmacist/Junior Estate Medical Officer	Rs.1,125.00
Estate Medical Practitioner	Rs.1,675.00
Medical Practitioner	Rs. 2,125.00
Child Development Officer/ Orderly/Ward Attendant on completion of 15 years satisfactory service	Rs. 875.00
Midwife Grade II/Apprentice Pharmacist/ Midwife Grade I/ and Welfare Officer on completion of 15 years satisfactory service	Rs. 1,025.00

13. Calls at night or on off days.–

- With effect from the date hereof, an allowance of Rs.175.00 shall be paid to members of the medical staff for calls in the Lines between 6.00 p.m. and 6.00 a.m. and Rs. 125.00 in respect of calls to the hospital, dispensary and maternity ward between 6 p.m. and 6 a.m. In the case of a night call between 6 p.m. and 6 a.m. to the Hospital, Dispensary or Maternity Ward, dealing with childbirth, the allowance payable shall be Rs. 400.00
- A call which has to be attended to in the Lines on a prescribed off day shall be treated as a night call and paid for at Rs. 175.00 per call.
- “Calls” shall mean physical visits.
- An Estate Medical Practitioner or Estate Medical Assistant overlooking work on another estate shall be paid an allowance of Rs. 500.00 in respect of each visit he is required to make to such other estate.
- Midwives shall be paid a uniform allowance of Rs. 3,000.00 per year.

14. Weekly off days.– A medical staff member shall be allowed one off day each week on which he will not be called upon to undertake routine duties. He will, however, be required to deal with all urgent cases, which may arise.

15. Holidays.–

- All employees covered by this Agreement will be entitled to the following six (6) holidays:

Tamil Thai Pongal Day
National Day
Day Prior to Sinhala & Tamil New Year
Sinhala & Tamil New Year Day
May Day
Day Following Vesak Full Moon Poya Day
Holy Prophet’s Birthday (Milad-Un-Nabi)
Christmas Day

viii. Payment for work on such holidays shall be remunerated guided by the decisions of the relevant wages boards.

16. *Leave.*—

1. **Annual Leave** -Employees shall be entitled to a maximum of 14 days Annual Leave. In the first year the leave entitlement shall be on a proportionate basis. All employees with more than 20 years service and Heads of Departments shall be entitled to three weeks paid annual leave as a special benefit; this right shall not extend to any employee recruited after 1st September 1993. Annual leave not utilized in any one year shall not be carried over to the next year.
2. **Casual Leave** - All employees shall be entitled in each year to a maximum of seven (7) days Casual leave with full pay, not more than three (3) days being taken at a time. Casual leave not utilized in any one year will not be carried over to the next year.
3. **Sick Leave** -
 - (i) Leave on full pay shall be granted up to a maximum of 21 working days in a year. Sick leave will be granted up to two days at a time without the submission of a Medical Certificate. For leave of three days and over, a medical certificate from an approved Medical Practitioner or a Government Hospital shall be considered necessary, subject to the right of the Employer to call for a medical certificate as aforementioned, where he deems it appropriate.
 - (ii) In the event of an employee not availing himself of his full quota of sick leave, he may carry forward his leave, which he could use in the event of hospitalization or a prolonged illness in a succeeding year, subject to the condition however that he cannot avail himself of more than 90 days on that account.
 - (iii) In the case of an employee whose terms presently permit him a higher quantum of sick leave he shall be permitted to continue to enjoy such concession as personal to him.
4. **Maternity Leave** - Maternity Leave will be granted as per the provisions of the Maternity Benefits Ordinance.

17. *Administrative Transfers.*—

- i. Transfers not involving hardship in relation to schooling of children or employment of a spouse, will, subject to the exigencies of the service and the requirements of the Employer, be made at the discretion of the Management with one month's notice in writing.
- ii. Transfers from one estate to another or from one division to another which are likely to cause hardship on account of children's schooling or the spouse's employment shall generally be made at the end of the year with three calendar months' notice in writing, on or before 30th September.
- iii. Employees whose children are sitting for the GCE OL/AL examination for the first time will not be transferred in that particular year.
- iv. The transfers of Employees whose children are to be admitted to Grade 1 in School also will be considered on a case-by-case basis.

- v. No transfers shall be effected from one Company to another managed by the Janatha Estates Development Board, without the consent of the employee.
- vi. No employee covered by this Agreement shall be transferred, except on disciplinary grounds in the last year prior to his retirement.
- vii. The provisions of sub-clauses (i), (ii) (iii) and (iv) above shall not apply to transfers on disciplinary grounds, but the Management shall give reasonable notice, depending on the circumstances of each case.

18. **Age of Retirement.**– The age of retirement will be as per the provisions of the Minimum Retirement age of workers Act No.28 of 2021.

Provided that, an employer may pre-maturely retire an employee on the grounds as provided for in the Act, referred above.

19. **Gratuity.**– Gratuity shall be payable in accordance with the Payment of Gratuity Act, No.12 of 1983.

20. **Disciplinary inquiries.**–

- i. An employee may be suspended without pay by his Employer pending an inquiry on a charge which warrants dismissal or where, in the opinion of the Employer, a breach of the peace, damage to property or disturbance of business needs to be avoided. Where an employee is suspended without pay he shall be notified in a general manner of the reasons for such suspension within 3 days of the actual suspension.
- ii. An employee may also be suspended with pay pending a disciplinary investigation and inquiry, where the Management deems that such measure is necessary.
- iii. An employee is entitled to be furnished with a ‘show cause’ notice setting out the charges of misconduct alleged against him and the employee shall be granted not less than seven (7) clear working days in which to give the answer or explanation. Where necessary the employee may request further time and the Employer shall permit a reasonable amount of time depending on the nature of the charges, but not exceeding a total of 14 working days, other than in exceptional circumstances.
- iv. If the Employer is satisfied with the written explanation, the employee shall be exonerated of the charge or charges and where appropriate he shall be summoned to report back for work. Where the explanation is unsatisfactory, the Employer shall hold a disciplinary inquiry within a reasonable length of time and shall commence such inquiry within 30 working days from the date on which the explanation to the ‘show cause’ letter is received, unless circumstances prevent the employer.
- v. An employee shall be permitted to have a Union member to defend him at the inquiry. Such representative shall not be a professional. If the employee wishes to have the benefit of such representation he shall inform the Superintendent of the name of the person defending him at least 48 hours before the inquiry is due to commence. The Superintendent may object to the individual selected, in which event the accused employee may nominate another representative. The failure of an employee to be defended by a representative shall not vitiate the inquiry.
- vi. The Employer shall endeavour to give the findings and convey the punishment, if any, within a period of 30 working days from the date on which the inquiry is concluded, unless there is justification for the delay. In no case shall the findings be delayed beyond 90 working days from the date of conclusion of the inquiry, save and except in the case of a pending criminal investigation. If no findings are given within 90 working days and the above exception does not apply, the accused employee shall be exonerated of the charges.

- vii. Notwithstanding the above provisions, an Employer may, where the circumstances so warrant, terminate an employee summarily. In such event the letter of termination shall set out the reasons for termination, including the justification for summary termination. In such event, the Union may appeal to the Employer or to the appropriate forum.

21. ***Suspension pending disciplinary inquiries.***–

- i. An employee may be suspended from work without pay for a period not exceeding one month pending a disciplinary inquiry when there is *prima facie evidence*, in the opinion of the Employer, of a charge or charges of misconduct against him. Such suspension shall be in writing.
- ii. Suspension of an employee on the ground referred to in sub-clause (1) above for any period in excess of one month shall be on half pay.
- iii. The provisions contained in sub-clauses (1) and (2) above shall not apply to the suspension of an employee pending inquiries by the Police, by other Public Authorities or Audit Verifications.

22. ***Suspension as a measure of punishment.***–

- i. Punishment for offences in the case of an employee may include suspension, provided however that such suspension shall not exceed fourteen days without pay and shall be in writing.
- ii. Punishment in excess of three days suspension without pay shall only be after a domestic inquiry.

23. ***Variations of terms and conditions of employment and disputes.***–

- i. Parties hereto agree that during the continuance in force of this Agreement, they will not seek to vary alter or add to any of the terms and conditions of employment, except by mutual consent.
- ii. Any employee enjoying a benefit, which is over and above the normal entitlement, shall continue to enjoy the same as personal, but this benefit shall not extend to any other employee. The above provision shall not apply to the consumption of electricity, where a limit is fixed for all employees.
- iii. Any dispute or issue of interpretation of this Agreement shall be resolved by reference to the Commissioner General of Labour under the Industrial Disputes Act, and if no settlement could be reached, by voluntary arbitration thereafter.
- iv. It is agreed by and between parties that the Unions, collectively or independently, or their members, shall not resort to any form of Trade Union action on any matter covered by this Agreement or is connected therewith.

24. ***Disputes resolution committee.***– It is agreed by parties that the Disputes Resolution Committee' will meet once in three months to resolve any dispute that may arise as set out in clause 4 above as well as in relation to any violation of the provisions of this agreement, if required. However, in case of an urgent necessity a meeting will be held with two weeks' notice. Decisions arrived at the Dispute Resolution Committee shall be implemented within a period agreed between the parties.

25 **Duty Leave.-**

- i. Subject to the approval of their respective Employers, the President and one other office bearer of the Parent Union will be permitted such duty leave as their Union duties require.
- ii. Where any dispute arises with regard to duty leave of the President and the nominated office bearer of the Parent Union, as specified in Sub clause (i) above, the Federation will attempt to effect an amicable settlement between parties.
- iii. By mutual arrangement with the Employer, the Treasurer of the Parent Union shall be allowed twelve days duty leave in any one year.
- iv. By arrangement with their respective Employers, two Vice Presidents of the Union shall be allowed twelve days duty leave which may be shared, on condition that the total leave availed jointly by these two Vice Presidents shall not exceed twelve days in any one year.
- v. By arrangement with their respective Employers, Branch Chairman and Sub-Branch Chairman of the Union shall be allowed twelve days duty leave which may be shared with the respective Branch Secretaries, on condition that the total leave availed jointly by these two office bearers shall not exceed twelve days in any one year.
- vi. Duty leave shall be granted to one employee selected from amongst all staff categories per estate selected by the union to attend seminars and workshops conducted by the union or any other labour related institute on not more than two occasion in a year for a period not exceeding four (4) days. The Union shall inform the Employers in writing the requirement of duty leave required in terms of this clause.

Part II

1. The Janatha Estates Development Board covered and bound by this Agreement undertakes to discuss with Union to resolve any issues relevant to employees in a situation of amalgamation/sub-leasing of estates/divisions/factories prior to such situations However, the Janatha Estate Development Board will continue to be the employer of such employees.

2. **Electricity.-**

Free electricity would be granted to members of staff on the following basis, irrespective of what they had been enjoying in the past.

Elevation below 4,500 feet (Factory Elevation)

Senior staff	-	140 units
Junior staff	-	100 units

Elevation above 4,500 feet (Factory Elevation)

Senior staff	-	170 units
Junior staff	-	130 units

Recoveries for any excess usage will be made once in 6 months on the accumulated figure at the rate that costs each estate.

Kerosene - Employer shall provide 25 litres kerosene oil per mensem to those employees resident on estates/ divisions without electricity.

3. **Tea allowance.**— The employer shall provide free tea, on the following basis, to members of estate staff (including future recruits in those categories presently entitled) irrespective of what they had been enjoying in the past.

Senior staff	-	2 Kgs.
Junior staff	-	1 1/2 Kgs.

The staff members could purchase in addition to the above free tea, the same quantities at the rate of 75% of the NSA or COP whichever is lower.

Staff members who had been entitled to three or more kilos of tea at a concessionary rate before June 1992 would be entitled to purchase a maximum of 3 kgs at a concessionary rate of 35% of COP or NSA whichever is lower with effect from 1 June 2003.

4. **Death Grant.**—

1. With effect from the date hereof, on the death of a staff member, the dependents will be paid a sum of Rupees Two Hundred Thousand (Rs.200,000.00) as funeral expenses.
2. The dependents of the deceased staff member will be paid 50% of the sum equivalent to 3 months salary within one month upon the death the balance at the time the dependents hand over the staff quarters.
3. If quarters are not provided to the deceased staff member, the dependents will be paid the sum equivalent to 3 months' salary within one month of the death of the staff member.

5. **Medical Aid Scheme.**—

1. The Employee contribution to the medical aid scheme will be 5% and the Employers' contribution shall be 10%.
2. A staff member who is a member of the staff medical aid scheme will be paid the total balance lying to his/her credit in the fund inclusive of the company's contribution to such fund, at the time of retirement/death or termination of his/her employment from the estate.

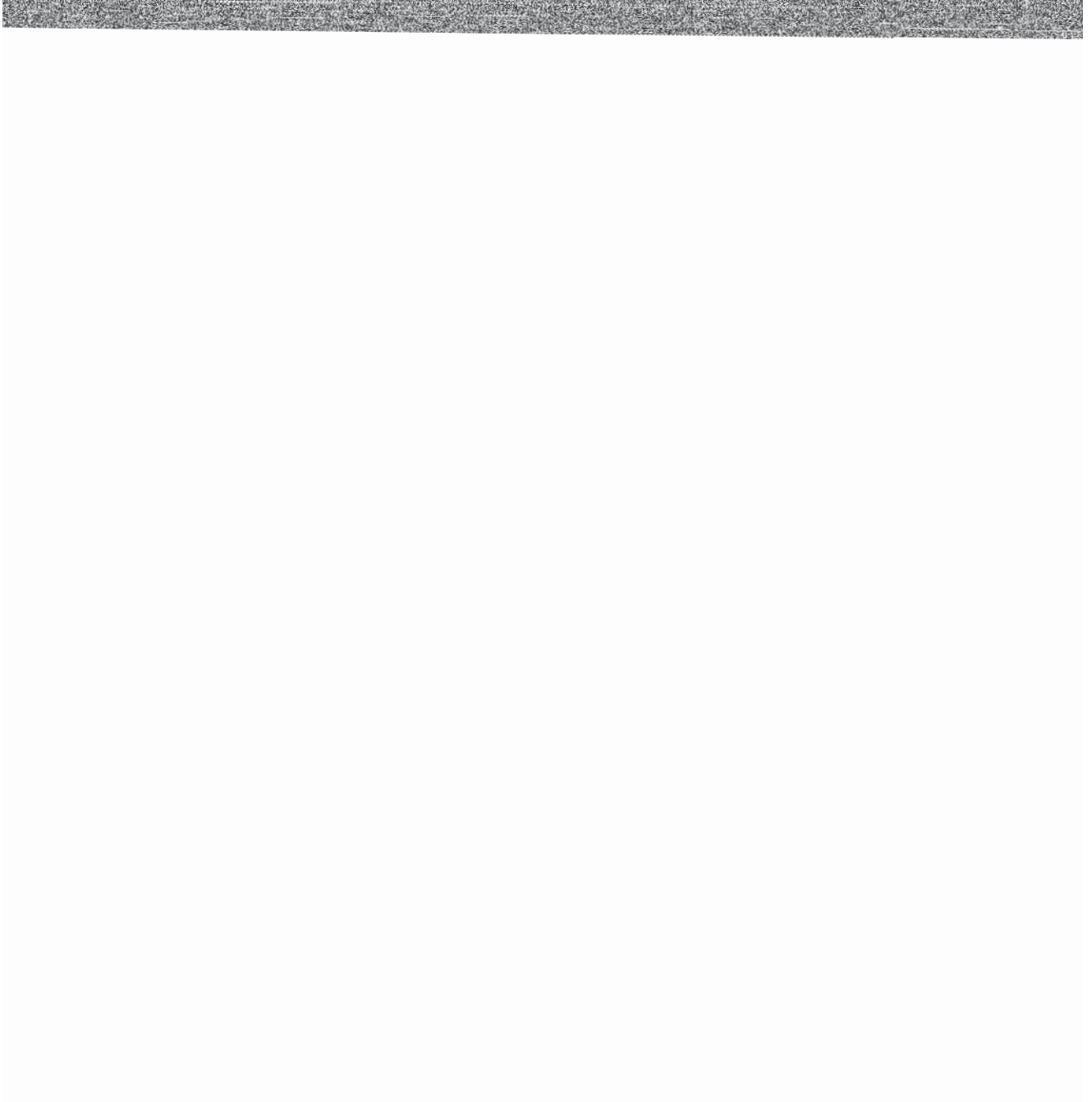
6. **Union Subscription.**—

- i. The Employer agrees, on the written request of an employee, to deduct from the wages due to such employee, the current monthly union subscription as specified by the employee, to be payable monthly by the employee to the union and remit the amount so deducted to the union by the following month till such time the employee maintains his request.
- ii. In the event of the union being representative of less than 40% of the employees, no remittance in respect of check-off would be made thereafter.

INTERPRETATION

Word	Meaning
Union	means the Union referred to as the Party of the Second Part in this Agreement.
Dispute	shall have the same meaning as in the Industrial Disputes Act.
Employer	means Janatha Estates Development Board
Week	means the period between midnight on any Saturday and midnight on the succeeding Sunday night.
Year	means a continuous period of 12 months.
Gender	a reference to the masculine gender shall include the feminine as well.

In Witness where of the parties aforesaid have hereunto set their hands at Colombo on this 14th day of July, Two Thousand and Twenty-Three.



Schedule I

Categories of Employees Medical Staff

<i>Designation</i>	<i>Starting Salary</i>	<i>Annual increment for 2023/2024/2025</i>
Child Development Officer/Orderly/ Ward Attendant	Rs.29,000.00	Rs. 775.00
Apprentice Pharmacist Midwife Grade 1 & 2 /Welfare Officer/	Rs.30,000.00	Rs. 925.00
Pharmacist/ Junior Estate Medical Assistant	Rs.31,000.00	Rs. 1125.00
Estate Medical Practitioner	Rs.33,000.00	Rs. 1675.00
Medical Practitioner	Rs.39,000.00	Rs. 2125.00
Child Development Officer/ Orderly/ Ward Attendant on completion of 15 years satisfactory service	Rs.29,000.00	Rs.875.00
Midwife Grade II/Apprentice Pharmacist/ Midwife Grade I/ and Welfare Officer on completion of 15 years satisfactory service	Rs.30,000.00	Rs.1,025.00

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